

SUPPLEMENTARY WITNESS STATEMENT

Criminal Justice Act 1967, s.9

|                   |                                                                                                                                                                                                                                                                                              |
|-------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Statement of      | Gareth Huw PYLE                                                                                                                                                                                                                                                                              |
| Statement number  | Second (supplementary). Supplements and in part withdraws the statement of 21 November 2023.                                                                                                                                                                                                 |
| Taken by          | DC L. Mbeki-Farnworth, West Yorkshire Police MIT, in the presence of HM Inspector K. Ormerod-Suss                                                                                                                                                                                            |
| Date              | 14 March 2024, 10:02–13:47, Elland Road Police Station (voluntary attendance)                                                                                                                                                                                                                |
| Representation    | Ms Verity Ashcombe-Nkosi, solicitor, Draycott Fenn LLP, present throughout                                                                                                                                                                                                                   |
| Caution           | The witness attended voluntarily. He was cautioned at 10:04 in respect of possible offences of perverting the course of justice and under s.5 of the Perjury Act 1911, and was told he was free to leave. He elected to continue and to make a witness statement rather than be interviewed. |
| Exhibits produced | GP/2 (screenshot, TowerLine inspection application, record 113); GP/3 (Mr Pyle's diary page, 13.11.2023); GP/4 (schedule of payments received)                                                                                                                                               |

*This statement (consisting of 4 pages each signed by me) is true to the best of my knowledge and belief and I make it knowing that, if it is tendered in evidence, I shall be liable to prosecution if I have wilfully stated in it anything which I know to be false or do not believe to be true.*

1. I have read my statement of 21 November 2023. Parts of it are not true. I want to correct it. I have been advised of my position and I understand that I may be prosecuted for what I said in that statement. I am making this statement of my own free will because I cannot carry it any longer.
2. The reason I gave that statement is that Mr Braithwaite-Oyelaran of TowerLine sat next to me throughout it. Before the inspector arrived he said to me words to the effect: ‘The company is finished if this goes the wrong way. Keep it simple.’ I took that as a clear instruction. I was worried about my job and about my card.

**The inspection of 13 November 2023**

3. I did carry out the inspection on the afternoon of 13 November 2023. That much was true.
4. The scaffold was not in good order. Three through-ties were missing on the east end at levels 6 and 7. The holes had not even been drilled. I remember because I put my hand where the tie should have been. The facade fixings that were supposed to take the load at the bay end were not in either.
5. I recorded that on the TowerLine tablet. I ticked ‘defect’. I wrote in the comments box, in capitals because I wanted it seen, ‘3 NO TIES MISSING L6/L7 EAST ELEV — DO NOT LOAD BAY LB-7 UNTIL RECTIFIED’. I know I wrote that. I produce a screenshot of it as GP/2. I did not take that screenshot myself; it was given to me by the police and I recognise it as what I wrote.
6. I did not sign a paper handover on 13 November 2023. Exhibit GP/1 to my first statement is not a document I completed. The signature on it looks like mine but I did not put it there. I do not know how it was produced. I now believe someone has taken my signature from another document.
7. That afternoon Ruaridh Delacroix-Hale rang me. He said the bay had to be loaded in the morning and asked me what it would take to clear it. I told him it needed the ties in first and that was a half-day job with the right kit. He said there was no half day. He said words to the effect: ‘Can you just tidy up the record and we’ll sort the ties Thursday?’ I said no. I said ‘if you want it changed you change it, I’m not touching it.’ That is exactly what I said. I did say that.
8. I did not report it to anyone else. I should have. I went home. I told myself Meridian would not load a bay with a defect on it. I have thought about that every day since.

**14 November 2023**

9. In my first statement I said I was on site all morning on 14 November 2023. That is not right. I was at the Wetherby depot until about half past ten collecting fittings. I got to site at about eleven. I badged in at the gate but I have been told that the gate record shows me badging in at ten to seven. That is because I gave my card to Aaron Vasilenko-Pratt on the Monday night to badge me in, because I knew I would be late and I did not want it on my record. That is a sackable offence and I accept it. The gate record for me that morning is wrong.

10. When I got to site I went to the cabin. I did not go up. The collapse happened maybe fifteen or twenty minutes after I arrived. I did not see it.
11. I have been asked whether I saw the bay loaded before the collapse. No.
12. I have been asked whether I told anyone on the morning of 14 November that the bay should not be loaded. No, I did not. I have no excuse for that.

**Payments**

13. I have been asked about payments. In January 2024 I was contacted by a firm called Arbuthnot Slade Investigations. They said they were instructed by solicitors acting for the developer. I met them twice. They paid me £2,500 in January 2024 and £2,000 in February 2024. It was described to me as a consultancy fee for explaining scaffolding practice. They did not tell me not to mention it. They did not tell me what to say. I have set out the payments at GP/4.
14. I accept that I did not mention those payments when I first agreed to give a further statement. I did not think it mattered. I now understand it does.
15. I have not received anything from Meridian, from Coldbrook directly, or from the liquidator of TowerLine. TowerLine owes me £6,340 in unpaid wages and holiday pay, which I have claimed in the liquidation.

**Matters I cannot help with**

16. I have been shown a document said to be a temporary works design check certificate for LB-7 with a safe working load of 2,000 kg. I have never seen that document before. Two tonnes on that bay is, in my opinion, absurd. But I am a scaffolder, not an engineer.
17. I have been asked whether I know who altered the inspection record. I do not know. I can only say that I did not.
18. I have been asked whether Mr Ferris was on site on 14 November 2023. I do not know. I have met him twice in five years, both times at TowerLine’s office.

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|---------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <i>Signed:</i>      | <u><b>G. H. Pyle</b></u>                                                                                                                                                                                                                                                                       |
| <i>Name / role:</i> | G. H. Pyle — Witness                                                                                                                                                                                                                                                                           |
| <i>Date:</i>        | 14 March 2024                                                                                                                                                                                                                                                                                  |
| <i>Note:</i>        | Witness advised of the availability of independent legal advice and of the terms of any future consideration of immunity or assistance under ss.71-75 of the Serious Organised Crime and Police Act 2005. No offer of immunity has been made. Ms Ashcombe-Nkosi asked for that to be recorded. |